

HOUSE BILL 2122

By Eldridge

AN ACT to amend Chapter 677 of the Private Acts of 1949; as amended by Chapter 434 of the Private Acts of 1968; and any other acts amendatory thereto, relative to the county attorney for Hamblen County.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 677 of the Private Acts of 1949, as amended by Chapter 434 of the Private Acts of 1968, and any other acts amendatory thereto, is amended by deleting Section 1 and substituting instead:

Section 1. That there is hereby created the office of County Attorney for Hamblen County. The County Attorney shall be elected by the Hamblen County Commission annually at the September meeting designated for the election of County Attorney.

SECTION 2. Chapter 677 of the Private Acts of 1949, as amended by Chapter 434 of the Private Acts of 1968, and any other acts amendatory thereto, is amended by deleting Section 3 and substituting instead:

Section 3. The County Attorney shall be paid for services an annual retainer fee of Twelve Hundred Dollars (\$1200), payable in equal monthly installments out of the general funds of the County, by warrant of the County Judge or Chairman upon the trustee. For legal services performed on behalf of the County, the County Attorney shall be entitled to receive additional reasonable compensation and reimbursement for actual expenses incurred. All compensation and reimbursement is subject to review by the County Legislative Body through the Consent Calendar. Claims for expenses shall be itemized and certified by the County Attorney, upon standard County financial policies, and shall be paid in the same manner as the retainer and other fees.

SECTION 3. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Hamblen County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 4. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 3.